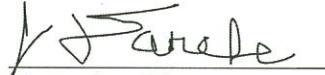


FIRST ENDORSEMENT

Executive Director, Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, May 1, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2024-31255 against Sergeant Miguele Amoresano, Tax Registry No. 924884. The case was conferenced on April 22, 2025, before Assistant Deputy Commissioner of Trials Paul M. Gamble, Sr., who approved a Dismissal of the Charges and Specifications with a penalty of Training to be imposed by the Department.



Executive Director

New York City Civilian Complaint Review Board

DISAPPROVED

JUL 24 2025



JESSICA S. TISCH
POLICE COMMISSIONER

**DISPOSITION OF CHARGES**

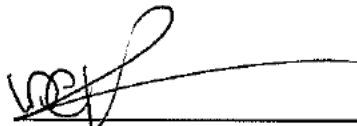
PD 468-142 (Rev. 8-89)-2

CASE NO.
C-030776BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE SSA	SURNAME, AMORESANO	FIRST MIGUELE	M.I.	COMMAND 162
SHIELD NO. 76	TAX REGISTRY NO. 924884	SOCIAL SECURITY NO.	DATE APPOINTED 03/01/2000	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

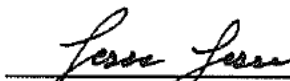
SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Miguele Amoresano, on or about March 21, 2023, at approximately 1253, while assigned to 030 PCT and on duty, in the vicinity of § 87(2)(b) New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he ordered PO Ducasse to issue an unlawful summons to § 87(2)(b) for having an "unattended running vehicle", without sufficient legal authority.	DISMISSED	TRAINING Respondent will comply with and complete re-training prescribed by the Department.



FIRST DEPUTY COMMISSIONER

07/01/25
DATE

POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)



POLICE COMMISSIONER

7/24/25
DATE



POLICE DEPARTMENT

July 15, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202303212 (Incident Date: March 21, 2022) involving Sergeant Miguele Amoresano, Tax No. 924884 (DADS Case No. 2024-31255 / PODS Case No. C-030776)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Miguele Amoresano and determined that no disciplinary action is warranted regarding the sole allegation of directing the issuance of an unlawful summons.

In this case, Sergeant Amoresano approached and stopped an individual who was washing his motorcycle on the sidewalk. Body-worn camera footage shows that the complainant's motorcycle was missing a license plate, while on the sidewalk, thus in violation of New York State Vehicle and Traffic Law §402. Additionally, the complainant's other vehicle was parked on the street with its engine idling, as he was washing his motorcycle. Sergeant Amoresano requested the complainant's identification multiple times, which he refused to provide. The complainant was then removed to the precinct for the issuance of a summons. While Sergeant Amoresano may have directed the issuance for the incorrect violation, for not observing the engine idling for more than three minutes, Sergeant Amoresano had probable cause to issue a summons for the missing license plate.

Thus, the Police Commissioner intends to dismiss the charges and specifications in this matter and impose no disciplinary action for the alleged misconduct.

Sincerely,

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

cc: John D'Alessandro, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



Dr. MOHAMMAD KHALID
INTERIM CHAIR

July 23, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Sergeant Miguele Amoresano
Disciplinary Case No.: 2024-31255

Dear Commissioner Tisch:

I am writing in response to the letter from Assistant Chief Michael P. Baker, dated July 15, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you determined that “no disciplinary action is warranted” in this matter. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Assistant Chief Baker’s notification. Assistant Chief Baker stated that after reviewing the recommendation of the CCRB, you determined that the actions of Sergeant Amoresano do not warrant disciplinary action. The CCRB disagrees with your recommendation.

In his letter, Assistant Chief Baker stated that SGT Amoresano should not be disciplined for directing the issuance of the unlawful idling summons since he had probable cause to issue a summons for the missing license plate. However, while the missing license plate justified the seizure of the motorcycle, it did not justify the issuance of a summons for a separate issue, engine idling, under these circumstances. The fact that there was a missing license plate did not give SGT Amoresano the authority to issue an unlawful summons for engine idling, nor does it exculpate him for issuing a summons for an “incorrect violation” as stated in Assistant Chief Baker’s letter. In this matter, the preponderance of the evidence shows that SGT Amoresano unlawfully ordered PO Ducasse to issue § 87(2)(b) a summons for vehicle idling. This encounter is captured on both DI Korabel and SGT Amoresano’s BWC footage. Based on the footage, SGT Amoresano ordered PO Ducasse to arrest § 87(2)(b) two minutes and fifteen seconds into the encounter. In addition, Summons #§ 87(2)(b) issued to § 87(2)(b) by PO Ducasse for having an unattended running vehicle, states the following: “At [time and place of occurrence] I was inform [sic] by Sgt. Amoresano he did observe the above vehicle idling for approx. more than 3 mins.” New York City Administrative Guide Section 24-163 states that no person shall cause or permit the engine of a

motor vehicle to idle for longer than three minutes. Per BWC footage, at the time SGT Amoresano placed § 87(2)(b) in handcuffs, SGT Amoresano had only been out of his vehicle for approximately one minute and nineteen seconds. Moreover, SGT Amoresano stated that the first time he saw § 87(2)(b) vehicle was when he arrived on scene, not at an earlier time. Due to these circumstances, it was not possible for SGT Amoresano to have observed § 87(2)(b) vehicle idling for more than three minutes before he made the decision to detain § 87(2)(b). Given that the evidence shows it was not possible for SGT Amoresano to have observed the vehicle idling for three minutes at the time of § 87(2)(b) detainment, the summons SGT Amoresano ordered PO Ducasse to issue § 87(2)(b) was unlawful.

Please note that the negotiated penalty was already a downward deviation from the recommended mitigated penalty of a forfeiture of ten (10) vacation days outlined in the Disciplinary Matrix. In making this recommendation, the CCRB already took into account the totality of the circumstances during this incident as well as SGT Amoresano's history with the Department. Additionally, this negotiated penalty was accepted by Assistant Deputy Commissioner of Trials Paul Gamble during the plea conference held on April 22, 2025.

Based upon the foregoing, CCRB requests that the negotiated penalty of Training be imposed.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
General Counsel
NYC Civilian Complaint Review Board

CC: John D'Alessandro, Esq.

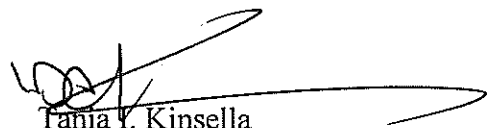
THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, July 1, 2025. Contents noted. I reviewed the negotiated plea in PODS Case No. C-030776 (CCRB Case No. 202303212) against Sergeant Miguele Amoresano, Tax No. 924884, with the recommendation that the Charges and Specifications against Sergeant Amoresano be dismissed and that Sergeant Amoresano receive Training. Assistant Deputy Commissioner, Trials Paul M. Gamble Sr. reviewed this matter and made a favorable recommendation pertaining to the proposed settlement; I do not concur.

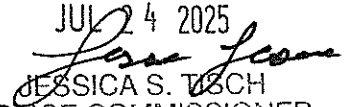
In this case, Sergeant Amoresano approached and stopped an individual who was washing his unregistered motorcycle on a public sidewalk. Said individual was then removed to the stationhouse after he refused to provide his identification. While Sergeant Amoresano may have directed the issuance for an incorrect violation, Sergeant Amoresano had probable cause to issue a summons under New York State Vehicle and Traffic Law Section 402.

Therefore, it is recommended that Sergeant Amoresano receives No Disciplinary Action in this matter. **RECOMMEND APPROVAL.**

TIK/jpc


Tania V. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

JUL 24 2025

JESSICA S. TISCH
POLICE COMMISSIONER